

WRITTEN SUBMISSIONS · 9 JUN 1998

Written submissions (enforcement judge)

TYPE	COURT	DATE
Pleadings / procedural document	Regional Court (TGI) of Grasse (enforcement judge)	9 Jun 1998
PARTIES		
Bernard Collorafi v. McDonald's France		

SUMMARY SHEET

Writ of summons before the enforcement judge — Grasse Regional Court (TGI) · 9 June 1998

Overview: writ of summons served at the request of the companies SEBOL, B et O, Les Pins and Mr Bernard Collorafi, against McDonald's France, before the enforcement judge of the Grasse Regional Court (TGI). Lawyers: Maître Jean-Paul Clément (counsel, Paris) and Maître Martine Bosc (counsel, Grasse).

Key points

The deed recalls the judgment of the Paris Commercial Court of 18 May 1998: dismissal of the claims of Mr Collorafi and his companies, finding that the agreements had been terminated, eviction from the restaurants subject to a penalty payment, and joint and several orders to pay unpaid fees. The applicants challenge the enforcement measures initiated by McDonald's:

- as the judgment of 18 May 1998 was not declared provisionally enforceable, McDonald's could not undertake measures of compulsory enforcement;
- the orders served on 27 May 1998 are said to be void, as they fail to indicate the legal representative and the particulars required by Article 194 of the decree of 31 July 1992;
- in the alternative, a request for a three-month period of grace and for 10,000 F under Article 700 of the NCPC.

Significance

A document from the enforcement strand: the companies try to suspend the eviction and the recovery pending the outcome of the appeal brought against the judgment of 18 May 1998.

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Source: bernardcollorafi.org/en/documents/writ-of-summons-enforcement-judge-grasse-collorafi-suspend-eviction-1998/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.